

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

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COURTNEY ROBINSON,

Plaintiff,

-against-

SUMMONS
Index#

CITY OF NEW YORK, POLICE OFFICER JOHN
SIKORA SHIELD #22498, POLICE OFFICER DANIEL
GERARDI, POLICE OFFICE RAMIL CASIMIR SHIELD
#11100, JOHN DOE OFFICERS #1-3,

Defendants
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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Kings County as the place of trial. The basis of venue is the place of plaintiff's residence which is Kings County.

Dated: Brooklyn, New York
May 15, 2018


Nicole Bellina, Esq.
Stoll, Glickman & Bellina, LLP
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Brooklyn, NY 11201
718 852 3710
Attorney for Plaintiff

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

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COURTNEY ROBINSON,

Plaintiff, **COMPLAINT &
JURY DEMAND**

-against-

CITY OF NEW YORK, POLICE OFFICER JOHN
SIKORA SHIELD #22498, POLICE OFFICER DANIEL
GERARDI, POLICE OFFICE RAMIL CASIMIR SHIELD
#11100, JOHN DOE OFFICERS #1-3,

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff seeks relief through 42 U.S.C. § 1983 for the violation of his Fourth, Fifth, and Fourteenth Amendment rights, and the laws and Constitution of the State of New York.

2. The claim arises from a June 11, 2017 incident in which New York City Police Department (“NYPD”) officers of the 75th Precinct, acting under color of state law, violated Mr. Robinson’s rights.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against Defendants, as well as an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

PARTIES

4. Plaintiff Courtney Robinson is a resident of Kings County, New York.

5. The City of New York (“City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the NYPD,

was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention, and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

6. Defendant officers John Sikora, Daniel Gerardi and Ramil Casimir were at all times here relevant police officers of the NYPD, and as such were acting in the capacities of agents, servants, and employees of the City of New York. On information and belief, at all times relevant hereto, John Sikora, Daniel Gerardi and Ramil Casimir were involved in the assault of plaintiff without cause or failed to intervene in the actions of their fellow officers when they observed them assaulting plaintiff. They are sued in their individual capacities.

7. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

NOTICE OF CLAIM

8. Within 90 days of the events giving rise to these claims, plaintiff filed a written Notice of Claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of the Notice, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

9. On June 11, 2017, at approximately 12:30 A.M., Plaintiff Courtney Robinson was talking to friends near Pitkin Ave. and Elton St. in Brooklyn.

10. Several men, later determined to be the defendant officers, pulled up in their car, jumped out and began following plaintiff. After a very short distance, plaintiff realized the men

were police officers and he stopped.

11. Plaintiff was then shoved to the ground by the officers. His face was slammed into the pavement. The officers continued the assault by using their hands and feet to repeatedly strike plaintiff in the face, head and body. As a result of the officers' assault, Mr. Robinson was injured.

12. At no time during the incident did plaintiff threaten or assault the officers nor was plaintiff ever charged with assaulting the officers. Plaintiff did not physically resist. The force used by the officers was unreasonable and unjustified.

13. Plaintiff was arrested and eventually taken to Brookdale Hospital where he received treatment for a severely swollen eye, a post septal hematoma, an orbital hematoma, and other injuries. The pain of these injuries, especially to his eye and shoulder, continued long after the assault and required additional treatment.

14. At all times during the events described above, the defendant officers were engaged in a joint venture and formed an agreement to violate plaintiff's rights. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against Plaintiff.

15. During all of the events above described, defendants acted maliciously and with intent to injure plaintiff.

DAMAGES

16. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of his rights pursuant to the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution;

- b. Violation of his rights under Article I of the New York State Constitution;
- c. Physical pain and suffering;
- d. Emotional trauma and suffering, including fear, embarrassment, humiliation, frustration, extreme inconvenience, shame, and anxiety;

FIRST CAUSE OF ACTION

42 U.S.C. § 1983

- 17. The above paragraphs are here incorporated by reference.
- 18. By repeatedly striking plaintiff and slamming his head into the ground, defendants used excessive force against him, and failed to intervene in each other's obviously illegal actions.
- 19. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to Plaintiff under 42 U.S.C. § 1983, New York State common law, and the New York State Constitution.
- 20. Plaintiff was damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION

ASSAULT & BATTERY

- 21. The above paragraphs are here incorporated by reference.
- 22. By repeatedly striking plaintiff and slamming his head into the ground, defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and offensive touching.
- 23. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
- 24. As a direct and proximate result of the misconduct and the abuse of authority detailed above, plaintiff sustained the damages described above.

THIRD CAUSE OF ACTION
RESPONDEAT SUPERIOR

25. The above paragraphs are here incorporated by reference.

26. Defendants' tortious acts were undertaken within the scope of their employment by defendant City of New York and in furtherance of the defendant City of New York's interest.

27. As a result of Defendants' tortious conduct in the course of their employment and in furtherance of the business of defendant City of New York, Plaintiff was damaged.

WHEREFORE, Plaintiffs demand judgment against Defendants as follows:

- a. On the First Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- b. On the Second Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- c. On the Third Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- d. For such other relief as this court deems just and proper.

JURY DEMAND

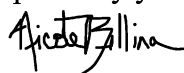
Plaintiff demands a trial by jury.

DATED: May 14, 2018
Brooklyn, New York

TO:
City of New York
100 Church St.
New York, NY 10007

Police Officer John Sikora
Police Officer Daniel Gerardi
Police Officer Ramil Casimir
75th Precinct
1000 Sutter Ave.
Brooklyn, NY 11208

Respectfully yours,



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